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County: los-angeles

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Case Number: 22STCV37617 Hearing Date: August 17, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department SSC-1

Hon. Theresa M. Traber

Sally Nungaray De Robles v. Lief Organics, LLC

Case

No.: 22STCV37617

Hearing Date:

August 17, 2026 – TO BE HEARD IN DEPARTMENT 17 BEFORE JUDGE SEIGLE

TENTATIVE RULING

The Court hereby GRANTS final approval and awards/approves the following:

(1) $280,000 for attorney fees to Class Counsel, Lavi & Ebrahimian, LLP and Matern Law Group, PC; (2) $21,646.81 for attorney costs to Class Counsel; (3) enhancement payments of $7,500 each to the class representatives, Sally Nungaray De Robles and Verenice Garcia De Gomez; (4) $30,000 (75% of $40,000 PAGA penalty) to the LWDA; and (5) $7,790 for settlement administration costs to Apex Class Action, LLC.

Plaintiffs' counsel shall file a proposed Order and Judgment, consistent with this ruling containing all requisite terms, including the class definition, release language, and a statement that no class members requested exclusion. The Court orders class counsel to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for ______________.

BACKGROUND

Plaintiffs Sally Nungaray De Robles and Verenice Garcia De Gomez sued their former employer, Defendant Lief Organics, LLC, for alleged wage and hour violations. Plaintiffs seek to represent a class of Defendant's current and former non-exempt employees.

On December 1, 2022, Plaintiff Robles filed her class action complaint alleging causes of action against Defendant for: (1) failure to pay wages for all hours worked at minimum wage in violation of Labor Code sections 1194 and 1197; (2) failure to pay overtime wages daily overtime worked in violation of Labor Code sections 510 and 1194; (3) failure to authorize or permit meal periods in violation of Labor Code sections 512 and 226.7; (4) failure to authorize or permit rest periods in violation of Labor Code section 226.7; (5) failure to timely pay earned wages during employment in violation of Labor Code section 204; (6) failure to provide complete and accurate wage statements in violation of Labor Code section 226; (7) failure to timely pay all earned wages and final paychecks due at time of separation of employment in violation of Labor Code sections 201, 202, and 203; and (8) and unfair business practices in violation of Business & Professions Code §§ 17200, et seq. ("Robles Action").

Pursuant to Labor Code section 2699.3, subd.(a), Plaintiff Robles also gave timely written notice to Defendant and the LWDA by sending the PAGA Notice on December 1, 2022. On February 6, 2023, Plaintiff Robles filed the PAGA Action (Court Case No. 23STCV02531) against Defendant for civil penalties pursuant to the Private Attorneys General Act of 2004 ("PAGA"), Labor Code sections 2698, et seq.

Pursuant

to Labor Code section 2699.3, subd.(a), Plaintiff Gomez gave timely written notice to Defendant and the LWDA by sending the PAGA Notice on December 29, 2022.

On
March 6, 2023, Plaintiff Gomez filed her action entitled Verenice Garcia De Gomez v. Lief Organics, LLC d/b/a Lief Labs Los Angeles County Superior Court Case No. 23STCV04888, alleging causes of action against Defendant for (1) failure to provide meal periods; (2) failure to provide rest periods; (3) failure to pay overtime wages; (4) failure to pay minimum wages; (5) failure to pay all wages due to discharged and quitting employees; (6) failure to maintain records; (7) failure to furnish accurate itemized wage statements; (8) failure to indemnify employees for necessary expenditure incurred in discharge of duties; (9) unfair business practices in violation of Business and Professions Code and (10) Penalties under the Labor Code Private Attorneys General Act, as representative action ("Gomez Action").

On
August 3, 2023, the Court entered an order finding Plaintiff Gomez's case related to the Robles Action and the PAGA Action, with the Robles Action (Case No. 22STCV37617) as the lead case.

On
November 8, 2023, the Parties participated in a mediation presided over by Todd Smith, Esq., which ultimately resulted in settlement after continued negotiations. The terms of settlement were finalized in the long-form Class Action and PAGA Settlement Agreement, a copy of which is attached to the Declaration of Paolo Policastro ("Policastro Decl.") as
Exhibit 1.

On
August 15, 2025, Plaintiffs filed the operative First Amended Complaint in the action to add Plaintiff Gomez as an additional representative and consolidate all claims alleged in the pending Robles Action as part of the terms of the Settlement.

On March
23, 2026, after the parties filed further briefing and a revised Settlement Agreement to address concerns raised by the Court, preliminary approval of the settlement was granted. All references below are to the agreement attached to

the Declaration of Paolo Policastro filed March 10, 2026.

Notice was given to
the Class Members as ordered (see Declaration of Beth Paris ("Paris Decl.").) Now before the Court is the Motion for Final Approval of the settlement.

SETTLEMENT
CLASS DEFINITION

.
"Class"
means a person employed by Defendant in California and classified as an hourly, non-exempt employee who worked for Defendant during the Class Period. (¶1.5)

.
"Class
Period" means the period from July 14, 2021, through June 16, 2025.
(¶1.12)

.
"Aggrieved
Employee" means a person employed by Defendant in California and classified as an hourly, non-exempt employee who worked for Defendant during the PAGA Period.
(¶1.4)

.
"PAGA
Period" means the period from December 1, 2021, through June 16, 2025. (¶1.33)

.
"Participating
Class Member" means a Class Member who does not submit a valid and timely Request for Exclusion from the Settlement. (¶1.35)

TERMS
OF SETTLEMENT AGREEMENT

The essential terms are as
follows:

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The Gross Settlement Amount (GSA) is $840,000, non-reversionary. (¶3.1)

o Escalator Clause: Based on its records, Defendant estimates that, as of the date of this Settlement Agreement, (1) there are 308 Class Members and 28,000 Total Workweeks during the Class Period and (2) there were approximately 213 Aggrieved Employees who worked approximately 12,900 PAGA Pay Periods during the PAGA Period. If the total number of Workweeks as of the end of the Class Period exceeds the above figure by greater than 10% (exceeds 30,800), then the Gross Settlement Amount shall increase pro rata based on the number of additional Workweeks above 10% (i.e., if the number of Workweeks is 11% greater than the above figure, then the Gross Settlement Amount shall increase by 1%), or, at Defendant's option, cutting off the Settlement Class period end date as of the date one day before the workweeks exceed 30,800. Provided, however, that Defendant may not cut short the Settlement Class period end date prior to the Settlement Date. (¶8)

o At final approval, the settlement administrator represents that the total number of workweeks worked by Participating Class Members during the Class Period was 28,217. (Paris Decl., ¶15.) Accordingly, the escalator clause was not triggered.

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The Net Settlement Amount ("Net") estimated at preliminary approval ($464,000) is the GSA minus the following:

o Up to $280,000 (33 1/3%) for attorney fees (¶3.2.2);

o Up to $22,000 for attorney costs (Ibid.);

o Up to $15,000 total [$7,500 each] for a service award to each proposed class representative (¶3.2.1);

o Up to $19,000 for settlement administration costs (¶3.2.3); and

o Payment of $40,000 PAGA penalty (75%
or $30,000 to the LWDA). (¶3.2.5)

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Defendant
will separately pay any and all employer-side payroll taxes owed on the Wage Portions of the Individual Class Payments. (¶3.1)

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There
is no claim form requirement. (¶3.1)

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Individual Settlement Payment Calculation: Each
Participating Settlement Class Member will receive an Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks. (¶3.2.4) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (¶3.2.4.2)

o

PAGA
Payments: The Administrator will
calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 25% share of PAGA Penalties ($10,000.00) by the total number of PAGA Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Pay Periods. (¶3.2.5.1)

o Tax Allocation: Each Participating Class Member’s Individual
Class Payment will be allocated as 20% to wages, 80% to interest and penalties (¶3.2.4.1). The Administrator will report the Individual PAGA Payments on IRS 1099 Forms. (¶3.2.5.2)

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"Response Deadline" means 45 calendar days after the Administrator mails Notice to Class Members and Aggrieved Employees, and is the last date on which Class Members may (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail Objection(s) to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator will have an additional 14 calendar days beyond the Response Deadline. (¶1.42) The same deadline applies to the submission of workweek disputes. (¶7.6)

o

If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 10% of the total of all Class Members, Defendant shall have the right, but not the obligation, exercised in Defendant's sole discretion, to cancel the Settlement and render it null and void. (¶9)

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Funding of Settlement: Defendant shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant share of payroll taxes, by transmitting 50% of the funds to the Administrator no later than 14 days after the Effective Date and the remaining 50% of the payment 6 months thereafter. (¶4.2)

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Disbursement:

Within 14 days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.3)

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Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. (¶4.3.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller s Unclaimed Property Fund in the name of the Class Member thereby leaving no unpaid residue subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.3.3)

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The settlement administrator will be Apex Class Action Administration. (¶1.2)

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The proposed settlement was submitted to the LWDA on August 5, 2025. (Exhibit 3 to Policastro Decl. ISO Prelim.)

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Releases of Claims: Effective on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiffs and Class Members will release claims against all Released Parties as follows: (¶5)

o Release by Participating Class Members: All Participating Class Members release Released Parties from claims that were alleged in the Operative Complaint, or that reasonably could have been alleged based upon the facts stated in the Operative Complaint and any notices submitted to the California Labor and Workforce Development Agency by Plaintiffs, including: (1) failure to pay wages for all hours worked at minimum wage in violation of Labor Code Sections 1194, 1194.2, and 1197, (2) failure to pay overtime wages for daily overtime worked in violations of Labor Code Sections 510 and 1194, (3) failure to authorize or permit meal periods in violation of Labor Code Sections 512 and 226.7, (4) failure to authorize or permit rest periods in violation of Labor Code Section 226.7, (5) failure to timely pay all earned wages during employment in violation of Labor Code Sections 204, (6) failure to provide complete and accurate wage statements in violation of Labor Code Section 226, (7) failure to timely pay all earned wages and final paychecks due at time of separation of employment in violation of Labor Code Sections 201, 202, and 203, (8) failure to indemnify employees for necessary expenditures incurred in discharge of duties in violation of Labor Code Section 2802, and (9) unfair business practices in violation of Business and Professional Code Sections 17200, et seq. The time period governing the Released Class Claims shall be the Class

Period. Except as set forth in Section 5.2 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (¶5.1)

o Release by Aggrieved Employees: All Aggrieved Employees are deemed to release the Released Parties from all PAGA claims alleged in the Fist [sic] Amended Complaint, and in the relevant LWDA notice letters. The time period governing the PAGA Released Claims shall be the PAGA Period. The claims to be released by the Aggrieved Employees as to the Released Parties include all claims for civil penalties under the PAGA based on the aforementioned claims. The PAGA Released Claims do not release any Aggrieved Employees' claims for wages or statutory penalties. (¶5.2)

§ "PAGA Notice" collectively means Plaintiff Robles' December 1, 2022 letter to Defendant and the LWDA providing notice pursuant to Labor Code section 2699.3, subd.(a). (¶1.31)

§ Because future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 5.2 of this Agreement and are eligible for an Individual PAGA Payment. (¶7.5.4)

o "Released Parties" means: Defendant and its parents, subsidiaries and affiliates, and their respective present and former officers, directors, stockholders, agents, employees, insurers, co-insurers, reinsurers, attorneys, accountants, auditors, advisors, representatives, consultants, pension and welfare benefit plans, plan fiduciaries, administrators, trustees, partners, predecessors, successors and assigns. (¶1.40)

o Named Plaintiffs will also provide a general release and CC § 1542 waiver. EXCEPT as to Plaintiff Gomez's harassment and wrongful termination case, Verenice Garcia De Gomez v. Life organics, LLC dba Lief Labs et al., Los Angeles County Superior Court Case

No.: 24STCV18096. (¶5.3.1)

ANALYSIS OF SETTLEMENT AGREEMENT

A.
Does a presumption of fairness exist?

The Court preliminarily found in its Order of March 23, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.
Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 309 (Paris Decl., ¶5.)

Number of notice packets mailed: 309 (Id. at ¶7.)

Number of undeliverable notices: 1 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶11.)

Number of objections: 0 (Id. at ¶12.)

Number of participating class members: 309 (Id. at ¶14.)

Average individual payment: $1,537.90 (Id. at ¶16.)

Highest individual payment: $3,452.46 (Ibid.)

The
Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the
Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C. Attorney Fees and Costs

Class
Counsel requests an award of $280,000 in fees and $21,646.81 in costs. (Memo ISO Final at 10:22-25.) The Settlement Agreement provides for up to $280,000 (33 1/3 %) in fees and $22,000 in costs (¶3.2.2).

"Courts
recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar. (Memo ISO Final at pp. 10-15.)

In
common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery."].)

Class Counsel has provided information,
summarized below, from which the lodestar may be calculated:

Firm

Rates

Hours

Totals

Lavi & Ebrahimian, LLP

$675-1,000

287

$210,150.00

Matern Law Group, PC

$500-1,150

37

$33,437.50

Totals

324

$243,587.50

(Declaration of David L. Gray ISO Final, ¶¶28-40;
Declaration of Dalia Khalili ISO Final, ¶8.)

Counsel's percentage-based fee request is higher
than the unadjusted lodestar, and would represent application of a multiplier
of approximately 1.15x.

Fee Split: Counsel for Plaintiffs Verenice Garcia de Gomez and
Sally Nungaray de Robles entered into a written Joint Prosecution and Attorney
Fee Split Agreement, and both Plaintiffs provided written approval, consenting
to the attorney fee split agreement. (Supp. Decl. of Dalia Khalili ISO Prelim,
¶5.)

Here, the fee request represents a reasonable
percentage of the total funds paid by Defendant. Notice of the fee request was
provided to class members in the notice packet and no one objected. (Paris Decl., ¶12, Exhibit A.)

As

for costs, Class Counsel is requesting a cost amount of $21,646.81. This is less than the $22,000 cap estimated at preliminary approval, which was disclosed to Class Members in the Notice and not objected to. (Paris Decl., ¶12, Exhibit A.) Counsel represent that costs include but are not limited to: filing and service fees, Case Anywhere, translation services, mediation fees, and expert fees. (Gray Decl. ISO Final, ¶46, Exhibit 2; Khalili Decl. ISO Final, ¶26.) The costs appear to be reasonable in amounts and reasonably necessary to this litigation.

Based on the above, the Court awards $280,000 in fees and $21,646.81 in costs.

D. Incentive Awards

The class representatives, Sally Nungaray De Robles and Verenice Garcia De Gomez, seek enhancement payments of $7,500 each for their contributions to the action. (Memo ISO Final at 16:3-5.)

In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they "should be compensated for the expense or risk he has incurred in conferring a benefit on other members of the class." (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.' Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was 'necessary to induce [the named plaintiff] to participate in the suit . . . .'" (Id. at 806-807, italics and ellipsis in original.)

Each Plaintiff represents that her contributions to this litigation include: intake and sign up interviews, meetings with their attorneys, producing relevant documents and information, responding to questions from their attorneys in preparation of litigating their case and for mediation, reviewing the settlement agreement, and reviewing their declarations. (Declaration of Sally Nungaray De Robles ISO Final, ¶4; Declaration of Verenice Garcia De Gomez ISO Final, ¶7.)

Based on the above, as well as the benefits obtained on behalf of the class, the Court grants enhancement payments in the amount of $7,500 to each Plaintiff.

E. Settlement Administration Costs

The settlement administrator, Apex Class Action, LLC, is requesting $7,790 for the costs of settlement administration. (Paris Decl., ¶19.) This is less than the estimate of $19,000 provided for in the Settlement Agreement (¶3.2.3) and disclosed to class members in the Notice, to which there were no objections. (Paris Decl., ¶12, Exhibit A.) Based on the above, the Court approves administrative costs in the requested amount of $7,790.